

TENTATIVE RULINGS

LAW & MOTION

DEPT C25

Judge Gassia Apkarian

The court will hear oral argument on all matters at the time noticed for the hearing, **unless the Court has stated that the matter is off calendar.** Do not call the department to verify if you should appear or not. Please read below for the information. **If you would prefer to submit to the Court's tentative without oral argument, advise all counsel first to find out if all parties are submitting, and then the moving party is to telephone the clerk at (657)622-5225 with the status of all parties.** If the moving party has submitted on the matter and there are no appearances by any party at the hearing, the tentative ruling will be the final ruling. Rulings are normally posted on the Internet by 12:00 p.m. the day before the hearing. Generally, motions will not be continued or taken off the calendar after the tentative has been posted. **The moving party shall give notice of the ruling.**

June 30, 2026

10:00 AM

If you want a transcript, you must provide your own court reporter.

#	Case Name	Tentative
101	Doe #1 J.H. vs. Roe 1 22-01299957	Demurrer to Second Amended Complaint Defendant ASSEMBLIES OF GOD, NORTHERN CALIFORNIA & NEVADA DISTRICT COUNCIL, INC. seeks an order sustaining its demurrer to the 1-7th causes of action of Plaintiff's SAC. As a threshold matter, Defendant argues that the 2nd (IIED), 3rd (Sexual Harassment), 6th (Violation of Civil Rights) and 7th (Battery) causes of action are barred by their respective statutes of limitations. Plaintiff alleges that he is 50 years old, and was a victim of childhood sexual assault, occurring in 1987-1989. (SAC¶1, 9.) He filed this lawsuit in 2022. Defendant argues the above causes of action are barred because CCP§340.1 was not intended to revive those causes of action.

	Plaintiff argues that the applicable version of CCP§340.1 (for 2022, the year the cause of action was filed), revives those causes of action because the 2022 version refers to “causes of action”. Indeed, in the 2022 version, CCP 340.1(r) provides that its time limits “revive any action” commenced after 2019, which is the case here. It also refers to “any action or causes of action that would have been barred by the laws in effect before the date of enactment.” Further, CCP 340.1(d) specifically provides that the enumerated statutes are not exhaustive; i.e. “This subdivision does not limit the availability of causes of action permitted under subdivision (a), including causes of action against persons or entities other than the alleged perpetrator of the abuse.” The statute does not limit the causes of action or theories, so long as the damages claimed arise from the “childhood sexual assault.” Therefore, the Code itself, as it was written in 2022 allowed for the revival of causes of action other than sexual assault. Therefore, the demurrer based on the SOL arguments is not well taken. Notably, on demurrer, a complaint must be liberally construed. Code Civ. Proc. § 452; <i>Stevens v. Superior Court</i> (1999) 75 Cal.App.4th 594, 601. All material facts properly pleaded, and reasonable inferences, must be accepted as true. <i>Aubry v. Tri-City Hospital Dist.</i> (1992) 2 Cal.4th 962, 966-67. A pleading is adequate if it contains a reasonably precise statement of the ultimate facts, in ordinary and concise language, and with sufficient detail to acquaint a defendant with the nature, source and extent of the claim. The degree of detail required depends on the extent to which the defendant in fairness needs such detail which can be conveniently provided by the plaintiff. Less particularity is required when the defendant ought to have co-extensive or superior
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	knowledge of the facts. Under normal circumstances, there is no need for specificity in pleading evidentiary facts. However, bare conclusions of law are insufficient. Code Civ. Proc. §§ 425.10(a), 459; Doe v. City of Los Angeles (2007) 42 Cal.4th 531, 549-50; Zelig v. County of Los Angeles (2002) 27 Cal.4th 1112, 1126; Doheny Park Terrace HOA v. Truck Ins. Exchange (2005) 132 Cal.App.4th 1076, 1098-99; Berger v. California Insurance Guarantee Assn (2005) 128 Cal.App.4th 989, 1006. SEXUAL ABUSE OF A MINOR (Against All Defendants) Defendant argues the SAC states no facts that support the legal contention District Council had any actual knowledge of Perpetrator’s misconduct necessary to establish ratification. However, at ¶44, among others, Plaintiff pleads ratification: 44. Defendants ratified Perpetrator’s sexual abuse of Plaintiff because Defendants had actual knowledge that Perpetrator had sexually harassed and abused minors, including but not limited to Plaintiff, yet they intentionally turned a blind eye and still allowed Perpetrator to work for Defendants, and did nothing to prevent any further abuse from occurring, thus allowing Perpetrator to gain access to and ultimately manipulate and sexually abuse minors, including Plaintiff. Defendants did not discipline or discharge Perpetrator; as such, they accepted and thus ratified his conduct. Furthermore, Plaintiff alleges that “Defendants were aware of the abuse within the Royal Rangers program.” (SAC¶8.) The rules of pleading require only general allegations of ultimate fact [with limited exceptions such as at the statutory C/As discussed below]; the plaintiff need not plead evidentiary facts supporting the allegation of ultimate fact. (Doe v. City of Los Angeles (2007) 42
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	Cal.4th 531, 550 [“the complaint ordinarily is sufficient if it alleges ultimate rather than evidentiary facts”]; Lim v. The.TV Corp. Internat. (2002) 99 Cal.App.4th 684, 690 [“California law emphasizes ultimate fact pleading (with some exceptions, notably for fraud and related torts) in ordinary and concise language, and the test for adequacy is not absolute but whether the pleading as a whole apprises the adversary of the factual basis of the claim;” internal citations and quotation marks omitted].) Plaintiff has sufficiently put Defendant on notice of the claim against it. For the purposes of demurrer, the Court must accept the facts as true. As to the 1st cause of action the Demurrer is Overruled. INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS (Against All Defendants) Defendant makes the same actual knowledge/ratification argument as above. Demurrer is Overruled as to the 2nd cause of action. SEXUAL HARASSMENT (Civ. Code §§ 51.9 & 52) (Against All Defendants) Here, in contrast to the other C/As challenged by the demurrer, this C/A is based on statute. Statutory claims must be pled with specificity. (Covenant Care, Inc. v. Superior Court (2004) 32 Cal.4th 771, 790; Fisher v. San Pedro Peninsula Hospital (1989) 214 Cal.App.3d 590, 604. This cause of action incorporates the prior allegations by reference (Para. 52), and then goes on to generally allege the statutory elements (Paras.53-36.) This is insufficient for this cause of action based on statute. While plaintiff’s allegations are sufficient for his
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		general tort claims, he needs to allege more specific facts as to the statutory claims alleged. As this is the demurrer to the Second Amended Complaint, the demurrer to the 3rd cause of action is Sustained without leave to amend. NEGLIGENCE (Against All Defendants) NEGLIGENT SUPERVISION (Against All Defendants) As to the 4th and 5th causes of action, Defendant appears to seek specific and detailed facts of the alleged incidents, which are not required at this stage in the litigation. Defendant is on notice of the claims against it. The Demurrer is Overruled as to the 4th and 5th negligence based causes of action. VIOLATION OF CIVIL RIGHTS (Against All Defendants) Plaintiff brings this cause of action pursuant to Civ. Code, § 52.1, the Tom Bane Civil Rights Act. “The Bane Act civilly protects individuals from conduct aimed at interfering with rights that are secured by federal or state law, where the interference is carried out ‘by threats, intimidation, or coercion.’” (Reese v. City of Sacramento (9th. Cir. 2018) 888 F.3d 1030, 1040; Civ. Code § 52.1 (a). “Section 52.1 ‘provides a cause of action for violations of a plaintiff’s state or federal civil rights committed by “threats, intimidation, or coercion.”’ (Reese, 888 F.3d at 1040, quoting Chaudry v. City of Los Angeles (9th Cir. 2014) 751 F.3d 1096, 1105.) Section 52.1 does not provide any substantive protections; instead, it enables individuals to sue for damages as a result of constitutional violations.
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In Gabrielle A. v. County of Orange (2017) 10 Cal.App.5th 1268 (a 4th/3rd case) our court of appeal stated:

“The Bane Act and related statutes ‘are California's response to [the] alarming increase in hate crimes.’ ... Civil Code section 52.1 provides that a person may bring a cause of action ‘in his or her own name and on his or her own behalf’ against anyone who ‘interferes by threats, intimidation or coercion, with the exercise or enjoyment’ of any constitutional or statutory right.” (Bay Area Rapid Transit Dist. v. Superior Court (1995) 38 Cal.App.4th 141, 144, 44 Cal.Rptr.2d 887.) “[T]o state a cause of action under section 52.1 there must first be violence or intimidation by threat of violence. Second, the violence or threatened violence must be due to plaintiff's membership in one of the specified classifications set forth in Civil Code section 51.7 or a group similarly protected by constitution or statute from hate crimes.” (Cabesuela v. Browning-Ferris Industries of California, Inc. (1998) 68 Cal.App.4th 101, 111, 80 Cal.Rptr.2d 60.)

(Id. at 1290.)

Here, Plaintiff pleads:

77. Plaintiff is informed and believes, and thereon alleges, that Defendants, and each of them, violated Plaintiff's civil rights and subjected him/her to physical violence.

78. During all times mentioned herein, Defendants, and each of them, separately and in concert, acted under color and pretense of law, under color of the statutes, ordinances, regulations, policies, practices, customs, and usages of the State of California. Each of the Defendants, separately and in concert, deprived Plaintiff of the rights and privileges secured to them by the Civil Code as alleged herein.

Plaintiff here does not identify a specific constitutional or statutory right. Nor does he allege he is a member of a specific class of people that this law was designed to protect. Finally, this statutory cause of action is not pled with any particularity. (Covenant Care, Inc. v. Superior Court (2004) 32 Cal.4th 771, 790; Lopez v. Southern Cal. Rapid Trans. Dist. (1985) 40 Cal.3d 780, 795.)

As such, demurrer is sustained without leave to amend as to the 6th cause of action.

BATTERY (Against All Defendants)

“A battery is any intentional, unlawful and harmful contact by one person with the person of another.... A harmful contact, intentionally done is the essence of a battery.... A contact is “unlawful” if it is unconsented to...’[Citation.] The elements of a civil battery are: “1. Defendant intentionally did an act which resulted in a harmful or offensive contact with the plaintiff’s person; [¶] 2. Plaintiff did not consent to the contact; [and][¶] 3. The harmful or offensive contact caused injury, damage, loss or harm to the plaintiff.” ’ [Citation.]” (Piedra v. Dugan (2004) 123 Cal.App.4th 1483, 1495 [citing Fluharty v. Fluharty (1997) 59 Cal.App.4th 484, 497].)

Plaintiff alleges that Defendants “aided, incited, ratified, and/or conspired in the denial of Plaintiff’s rights to be free from sexual harassment by Perpetrator(s), who was their agent(s), and thus allowed Perpetrator(s) to repeatedly sexually harass and abuse Plaintiff, who was a minor at the time.” (SAC, ¶ 85.) He alleges that “Defendants caused Plaintiff to be touched with the intent to harm or offend Plaintiff by acting with a willful disregard of Plaintiff’s rights,” and that “Plaintiff did not consent to the touching, nor could Plaintiff have consented to the touching given his/her age at the time the touching occurred.” (FAC, ¶ 86, 88.)

		Ratification is a means to hold an entity liable for the torts of its employees or members. (See gen. Baptist v. Robinson (2006) 143 Cal.App.4th 151, 169–170.) Demurrer is overruled as to the 7th cause of action for the same reasons as the 1st cause of action. RJN is unnecessary to the Court’s ruling.
102	MutouJackson vs. Fullerton Police Department 25-01479364	Motion for Leave to First File Amended Complaint Plaintiff, Angelpharaoh MutouJackson (“Plaintiff”), in proper, moves for an order granting leave to file the attached First Amended Complaint. Defendant, City of Fullerton (the “City”), first contends that the motion should be denied as Plaintiff’s motion does not satisfy the requirements of the California Rules of Court and fails to comply with procedural requirements for seeking leave to file an amended complaint. A motion to amend a pleading before trial must: (1) include a copy of the proposed amendment or amended pleading; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located. (California Rules of Court, rule 3.1324(a).) A separate declaration must accompany the motion and must specify: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. (California Rules of Court, rule 3.1324(b).) Here, while Plaintiff includes a copy of the proposed amended pleading, Plaintiff does not state what allegations in the original complaint are proposed to be deleted and what allegations are proposed to be added. Additionally, Plaintiff does not set forth when facts giving rise to the amended

		allegations were discovered and the reasons why the request for amendment was not made earlier. In addition, the City contends that even assuming the motion was procedurally proper, Plaintiff's allegations and proposed amended Complaint still fail to state a valid cause of action as Plaintiff has not shown timely presentation of his claim as required by the Government Tort Claims Act and fails to establish compliance with the statutory requirements for leave to present any late claims such that Plaintiff's claims are statutorily time-barred. The City further contends that amendment is highly prejudicial to the City and Plaintiff's Complaint alleges police misconduct, brutality, and excessive force, while his proposed amended Complaint, filed nearly a year later, adds four new causes of action, the Court has already set a trial date of November 9, 2026, that Plaintiff offers no adequate justification for his delay and seeks to amend based on facts he has purportedly known of for a long time. Plaintiff fails to cite to any authority to support the requested relief. Nevertheless, the court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. (Code Civ. Proc. § 473(a)(1).) The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code. (Ibid.) Additionally, any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order. (Code Civ. Proc. § 576.) California courts generally exercise their discretion liberally to permit the amendment of pleadings at all stages of the proceeding in order to resolve cases on their merits. (IMO Development Corp. v. Dow Corning (1982) 135 Cal. App. 3d 451, 461.) This liberality only applies so long as there is no prejudice to the opposing party. (Higgins v. Del Faro (1981) 123 Cal. App. 3d 558, 564.) Leave to amend can be denied if the party seeking the amendment has been dilatory, and the
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		delay has prejudiced the opposing party. (Hirsa v. Sup.Ct. (Vickers) (1981) 118 Cal. App. 3d 486, 490; Melican v. Regents of Univ. of Calif. (2007) 151 Cal. App. 4th 168, 176; Fisher v. Larsen (1982) 138 Cal. App. 3d 627, 649 [finding where plaintiff knew for over five months that certain claims had not been properly pleaded, and took no action to amend until after a summary judgment had been granted against it, it was not an abuse of discretion to deny leave to amend the complaint].) “[T]he trial court has wide discretion in determining whether to allow the amendment, but the appropriate exercise of that discretion requires the trial court to consider a number of factors: ‘including the conduct of the moving party and the belated presentation of the amendment. [Citation.] . . . The law is well settled that a long deferred presentation of the proposed amendment without a showing of excuse for the delay is itself a significant factor to uphold the trial court’s denial of the amendment. [Citation.]’ [Citation.] ‘The law is also clear that even if a good amendment is proposed in proper form, unwarranted delay in presenting it may—of itself—be a valid reason for denial.’ [Citation.]” (Leader v. Health Industries of America, Inc. (2001) 89 Cal.App.4th 603, 612-613.) “[I]t is a rare case in which a court will be justified in refusing a party leave to amend his pleadings so that he may properly present his case. If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion.” (Morgan v. Superior Court (1959) 172 Cal.App.2d 527, 530 [internal citations and quotation marks omitted].) Denial of leave to amend is appropriate where inexcusable delay and probable prejudice to the opposing party is shown. This may happen where a proposed amendment opens up an entirely new field of inquiry without any satisfactory explanation as to why the major change in point of attack had not been made long before trial. (Estate of Murphy v. Gulf Ins. Co. (1978) 82 Cal.App.3d 304, 311.) “ ‘Leave to amend may be denied if there is prejudice to the opposing party, such as delay in trial, loss of critical evidence, or added costs of preparation. [Citation.]’ ” (Bidari v. Kelk (2023) 90 Cal.App.5th 1152, 1173.) “ ‘There is [also] a platoon of authority to the effect that a long unexcused delay is sufficient to uphold a trial judge’s decision to deny the opportunity to
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		amend pleadings.’ [Citation.]” (Ibid.) “Prejudice exists where the proposed amendment would require delaying the trial, resulting in added costs of preparation and increased discovery burdens.” (Miles v. City of L.A. (2020) 56 Cal.App.5th 728, 739.) Here, the original complaint was filed on May 2, 2025, and Plaintiff filed the instant motion on April 20, 2026. Plaintiff has not stated when the facts giving rise to this amended pleading were discovered and Plaintiff has not provided an explanation as to why the request for amendment was not made earlier, especially where, as here, Plaintiff provides that Plaintiff merely seeks to clarify factual allegations, add additional evidentiary support, and to ensure complete and accurate presentation of Plaintiff’s claims. Although the City argues amendment would be highly prejudicial, citing to the trial set on November 9, 2026, and that the City has reserved a hearing date of October 6, 2026, for its motion for summary judgment, there is no showing that the allegations that Plaintiff seek to add assert a new theory or facts which would require additional discovery or delaying trial. However, even if the motion complied with the procedural requirements, and the delay in seeking leave to amend was overlooked, the proposed First Amended Complaint fails to state a cause of action. “[I]f the proposed amendment fails to state a cause of action, it is proper to deny leave to amend.” (Falcon v. Long Beach Genetics, Inc. (2014) 224 Cal.App.4th 1263, 1280.) “[T]he failure of a proposed amendment to state facts sufficient to constitute a cause or defense may support an order denying a motion to amend. [Citation.] That rule would find its most appropriate application, however, in cases in which the insufficiency of the proposed amendment is established by controlling precedent and where the insufficiency could not be cured by further appropriate amendment.” (Calif. Cas. Gen. Ins. Co. v. Superior Court (1985) 173 Cal.App.3d 274, 280-281 disapproved of on other grounds by Kransco v. Am. Empire Surplus Lines Ins. Co. (2000) 23 Cal.4th 390.) “A plaintiff suing the state or local public entity must allege facts demonstrating either compliance with the claims presentation requirement or an excuse for noncompliance as an essential element of the cause of action. [Citations.]” (Ovando v. County of Los Angeles (2008) 159 Cal.App.4th 42, 65.) “The plaintiff must prove compliance with the claim presentation requirement, or establish an excuse for noncompliance, to establish the defendant’s liability. [Citation.]” (Ibid.)
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		“Suits for money or damages filed against a public entity are regulated by statutes contained in division 3.6 of the Government Code, commonly referred to as the Government Claims Act.” (DiCampi-Mintz v. County of Santa Clara (2012) 55 Cal.4th 983, 989.) “Section 905 requires that, subject to exceptions not present here, ‘all claims for money or damages against local public entities’ must be presented in accordance with Chapter 1 (commencing with Section 900) and Chapter 2 (commencing with Section 910)’ of the Government Code.” (Id. at p. 990.) “ ‘ “Local public entity” includes a county, city, district, public authority, public agency, and any other political subdivision or public corporation in the State’ [Citation.]” (Ibid.) The Fourth District Court of Appeal in J.J. v. County of San Diego (2014) 223 Cal.App.4th 1214 explained the claims presentation requirement as follows: “The Government Claims Act (§ 810 et seq.) ‘establishes certain conditions precedent to the filing of a lawsuit against a public entity. As relevant here, a plaintiff must timely file a claim for money or damages with the public entity. (§ 911.2.) The failure to do so bars the plaintiff from bringing suit against that entity. (§ 945.4.)’ (State of California v. Superior Court (2004) 32 Cal.4th 1234, 1237[13 Cal.Rptr.3d 534, 90 P.3d 116].) ‘[T]he claims presentation requirement applies to all forms of monetary demands, regardless of the theory of the action....’ [Citation.] ‘The policy underlying the claims presentation requirements is to afford prompt notice to public entities. This permits early investigation and evaluation of the claim and informed fiscal planning in light of prospective liabilities.’ (Ibid.) “Claims for personal injury must be presented not later than six months after the accrual of the cause of action.... (§ 911.2, subd. (a).) Timely claim presentation is not merely a procedural requirement but is a condition precedent to the claimant's ability to maintain an action against the public entity. (Shirk v. Vista Unified School Dist. (2007) 42 Cal.4th 201, 209[64 Cal.Rptr.3d 210, 164 P.3d 630].) ‘Only after the public entity's board has acted upon or is deemed to have rejected the claim may the injured person bring a lawsuit alleging a cause of action in tort against the public entity.’ (Ibid.) “The failure to timely present a claim to the public entity bars the claimant from filing a lawsuit against that public entity. (City of San Jose v. Superior Court (1974) 12 Cal.3d 447, 454[115 Cal.Rptr. 797, 525 P.2d 701].) Moreover, because the purpose of the claims is not ‘to prevent surprise [but rather] is
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		to provide the public entity sufficient information to enable it to adequately investigate claims and to settle them, if appropriate, without the expense of litigation ... [citations][,] ... [i]t is well-settled that claims statutes must be satisfied even in face of the public entity's actual knowledge of the circumstances surrounding the claim. Such knowledge—standing alone—constitutes neither substantial compliance nor basis for estoppel.’ (Id. at p. 455[115 Cal.Rptr. 797, 525 P.2d 701].)” (California Restaurant Management Systems v. City of San Diego (2011) 195 Cal.App.4th 1581, 1591–1592, 126 Cal.Rptr.3d 160.) (J.J. v. County of San Diego (2014) 223 Cal.App.4th 1214, 1219.) Here, the proposed First Amended Complaint seeks to asserts causes of action for negligence, battery, and violation of Civil Rights, and alleges that Plaintiff suffered physical, emotional, and property damages arising from Plaintiff arrest on April 22, 2025, when Plaintiff was a passenger on a public bus in Fullerton and requested assistance and asked the driver to contact law enforcement. Importantly, the proposed First Amended Complaint alleges that the subject incident occurred on or around April 22, 2025, and that Plaintiff filed a government claim on March 16, 2026. Thus, the allegations in the proposed First Amended Complaint indicate that Plaintiff failed to timely present a claim such that Plaintiff’s proposed claims would be barred. Additionally, there are no allegations that support an excuse for noncompliance. There is no indication that this deficiency could be cured by further amendment. Based on the foregoing, Plaintiff’s motion for leave to file a First Amended Complaint is DENIED. The Court GRANTS Defendant’s request for judicial notice as to Exhibits 1 through 3 pursuant to Evidence Code section 452(d) as court records but declines to take judicial notice of the truth of hearsay statements therein. The City to give notice.
103	Olive vs. Harcrow 24-01426576	1. Demurrer to First Amended Complaint 2. Motion to Strike Portions Of First Amended Complaint The Court finds that, as alleged, the first cause of action for breach of fiduciary duty is alleged as a derivative cause of action. “A minority shareholder

	may bring a cause of action for breach of fiduciary duty against majority shareholders as an individual claim or as a derivative claim, depending on the circumstances.” (Shrage v. Shrage (2021) 69 Cal.App.5th 126, 149 [emphasis added].) Importantly, however, “where conduct, including mismanagement by corporate officers, causes damage to the corporation, it is the entity that must bring suit; the individual shareholder may not bring an action for indirect personal losses (i.e., decrease in stock value) sustained as a result of the overall harm to the entity.” (Ibid.) The Demurrer is SUSTAINED WITH LEAVE TO AMEND as to the first cause of action for breach of fiduciary duty. 3. Order to Show Cause re: Sanctions for Failure to Follow a Court Order Defendant Scott Harcrow (“Defendant”) demurs to all causes of action on the grounds that Plaintiff lacks standing to sue and, alternatively, demurs to the third cause of action for breach of contract and fifth cause of action for fraud because Plaintiff does not state facts sufficient to constitute these causes of action. The First Amended Complaint contains the following causes of action: (1) breach of fiduciary duty, (2) access to books and records pursuant to Corporations Code sections 1601 and 1063, (3) breach of contract, (4) conversion, (5) fraud – concealment, (6) declaratory relief, and (7) accounting. (ROA 16.) First, Defendant argues that Plaintiff lacks standing because he filed the Complaint individually, rather than derivatively. Defendant argues that the damages alleged are not individual damages but rather are damages to the corporation, K&S Excavating, Inc. Moreover, Defendant also argues that Plaintiff has not alleged the requisite procedural hurdles under California Corporations Code §800 that permit him to bring a derivative action on behalf of the corporation.
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		In opposition, Plaintiff argues that K&S Excavating, Inc. is a closely held corporation with only Plaintiff and Defendant as its shareholders, each of who hold a 50% stake in the corporation. Plaintiff relies on the holding in <i>Jara v. Suprema Meats, Inc.</i> (2004) 121 Cal.App.4th 1238, 1243 for his contention that he has standing to bring the action as alleged. Defendant did not file a reply. “[A] derivative suit is one in which the shareholder seeks redress of the wrong to the corporation.” (<i>Bader v. Anderson</i> (2009) 179 Cal.App.4th 775, 793.) “Thus, an action ‘is derivative, i.e., in the corporate right, if the gravamen of the complaint is injury to the corporation, or to the whole body of its stock and property without any severance or distribution among individual holders, or it seeks to recover assets for the corporation or to prevent the dissipation of its assets.’” (<i>Bader v. Anderson</i> (2009) 179 Cal.App.4th 775, 793 [citing <i>Jones v. H.F. Ahmanson & Co.</i> (1969) 1 Cal.3d 93, 106].) “On the other hand, a direct or individual suit by a stockholder ‘is a suit to enforce a [] right against the corporation which the stockholder possesses as an individual.’” (<i>Bader v. Anderson</i> (2009) 179 Cal.App.4th 775, 793 [citing <i>Jones v. H.F. Ahmanson & Co.</i> (1969) 1 Cal.3d 93, 107].) “For example, [i]f the injury is one to the plaintiff as a stockholder and to him individually, and not to the corporation, as where the action is based on a contract to which he is a party, or on a right belonging severally to him, or on a fraud affecting him directly, it is an individual action.” (<i>Schrage v. Schrage</i> (2021) 69 Cal.App.5th 126, 150.) “As a precondition for bringing a derivative action on behalf of the corporation, the shareholder should show to the satisfaction of the court that he has exhausted all the means within his reach to obtain, within the corporation itself, the redress of his grievances, or action in conformity with his wishes.” (<i>Bader v.</i>
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Anderson (2009) 179 Cal.App.4th 775, 789.) “The failure to comply with this requirement under section 800(b)(2) leaves a shareholder/plaintiff without standing to bring a derivative claim on behalf of the corporation.” (Id. at 793.)

The “requirement that a shareholder establish that he or she made a suitable demand, unless excused by extraordinary conditions is to encourage intracorporate resolution of disputes and to protect the managerial freedom of those to whom the responsibility of running the business is delegated.” (Bader v. Anderson (2009) 179 Cal.App.4th 775, 789-790.) “The demand requirement is also intended to prevent the abuse of the derivative suit remedy.” (Id. 790.)

“Demand typically is deemed futile when a majority of the directors have participated in or approved the alleged wrongdoing, [citation], or are otherwise financially interested in the challenged transactions.” (Bader v. Anderson (2009) 179 Cal.App.4th 775, 790.)

Importantly, however, “it is settled that one who has suffered injury both as an individual owner of a corporate entity and in an individual capacity is entitled to pursue remedies in both capacities.” (Holistic Supplements, L.L.C. v. Stark (2021) 61 Cal.App.5th 530, 542.) Holistic Supplements, L.L.C. v. Stark (2021) 61 Cal.App.5th 530, 542 further states:

“The line between personal and derivative claims is drawn according to the injury inflicted: ‘The claims are derivative where the injury alleged is one inflicted on the corporate entity or on the ‘whole body of its stock.’ [Citation.] A personal claim, in contrast, asserts a right against the corporation which the shareholder possesses as an individual apart from the corporate entity: ‘If the injury is not incidental to an injury to the corporation, an individual cause of action exists.’ ” (Id. at p. 1222, 18 Cal.Rptr.3d 276.) “In determining whether an individual action as opposed to a derivative action lies, a court looks at ‘the gravamen of the wrong alleged in

the pleadings.” (PacLink Communications Internat., Inc. v. Superior Court (2001) 90 Cal.App.4th 958, 965, 109 Cal.Rptr.2d 436 (PacLink).).”

Here, the First Amended Complaint contains the following causes of action: (1) breach of fiduciary duty, (2) access to books and records pursuant to Corporations Code sections 1601 and 1603, (3) breach of contract, (4) conversion, (5) fraud – concealment, (6) declaratory relief, and (7) accounting. (ROA 16.)

The Court finds that, as alleged, the first cause of action for breach of fiduciary duty is alleged as a derivative cause of action. “A minority shareholder may bring a cause of action for breach of fiduciary duty against majority shareholders as an individual claim or as a derivative claim, depending on the circumstances.” (Schrage v. Schrage (2021) 69 Cal.App.5th 126, 149 [emphasis added].) Importantly, however, “where conduct, including mismanagement by corporate officers, causes damage to the corporation, it is the entity that must bring suit; the individual shareholder may not bring an action for indirect personal losses (i.e., decrease in stock value) sustained as a result of the overall harm to the entity.” (Ibid.) The Demurrer is SUSTAINED WITH LEAVE TO AMEND as to the first cause of action for breach of fiduciary duty.

The Court finds that Plaintiff’s second cause of action for access to books and records pursuant to Corporations Code section 1601 and 1603 impacts his individual right to access the corporation’s books and records as a shareholder in the company. The Court finds that, as alleged, the second cause of action is alleged as an individual claim. Defendant’s standing argument fails as to the second cause of action. The Demurrer is OVERRULED as to the second cause of action for access to books and records pursuant to Corporations Code section 1601 and 1603.

The Court finds the Complaint uncertain as to the third cause of action. It is unclear whether the contract was

		executed between Defendant and the corporation or Defendant and Plaintiff. As a result, the Court is unable to determine whether Defendant breached obligations agreed upon and owed to Plaintiff or agreed upon and owed to the corporation. The Court further finds that the terms of the contract that were allegedly breach are generally uncertain. (Otworth v. Southern Pac. Transportation Co. (1985) 166 Cal.App.3d 452, 458–459 [“If the action is based on an alleged breach of a written contract, the terms must be set out verbatim in the body of the complaint or a copy of the written instrument must be attached and incorporated by reference.”].) The Demurrer is SUSTAINED WITH LEAVE TO AMEND as to the third cause of action for breach of contract on the grounds that Plaintiff’s standing is uncertain and the terms of the contract at issue are uncertain as well. The Court finds that the fourth cause of action for conversion, fifth cause of action for fraud - concealment, and seventh cause of action for accounting are also derivative actions as alleged. Plaintiff alleges that Defendant knowingly used corporation funds for Defendant own personal use. As discussed under the breach of fiduciary cause of action, such mismanagement of corporate funds are corporate injuries and therefore derivative causes of action. (Schrage v. Schrage (2021) 69 Cal.App.5th 126, 153 [citing Heshejin v. Rostami (2020) 54 Cal.App.5th 984, 994, fn. 10, 268 Cal.Rptr.3d 836 [“ ‘ ‘a shareholder cannot bring a direct action for damages against management on the theory their alleged wrongdoing decreased the value of his or her stock (e.g., by reducing corporate assets and net worth)’ ’ ”]; instead, the “ ‘ ‘corporation itself must bring such an action, or a derivative suit may be brought on the corporation’s behalf” ’ ”]; Oakland Raiders v. National Football League (2005) 131 Cal.App.4th 621, 651, 32 Cal.Rptr.3d 266 [plaintiff’s breach of fiduciary duty claim for corporate mismanagement and diverting corporate assets was derivative]; PacLink
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	Communications Internat., Inc. v. Superior Court (2001) 90 Cal.App.4th 958, 964, 109 Cal.Rptr.2d 436 [minority members’ fraudulent transfer claim was derivative where the “injury was essentially a diminution in the value of their membership interest in the [limited liability company] occasioned by the loss of the company's assets”]; Nelson, supra, 72 Cal.App.4th at pp. 125-126, 84 Cal.Rptr.2d 753 [minority shareholder's breach of fiduciary duty claim alleging the other shareholder of the corporation negligently managed the business was derivative]; Marsh et al., Marsh's Cal. Corporation Law (2021 supp.) Derivative Action, § 15.11[A][1] [“The clearest cases [of derivative actions] are those involving situations where the alleged wrongful actions of the defendants have reduced the corporate assets and net worth.”).) The Demurrer is SUSTAINED WITH LEAVE TO AMEND as to the fourth cause of action for conversion, fifth cause of action for fraud - concealment, and seventh cause of action for accounting. Given the above, the sixth cause of action for declaratory relief is OVERRULED as to Plaintiff’s inspection claim but SUSTAINED WITH LEAVE TO AMEND as to the relief sought in relation to the contract and Defendant’s personal use of corporate funds. Plaintiff is GRANTED 20 days leave to amend. Defendant Scott Harcrow (“Defendant”) moves to strike the allegations related to Plaintiff’s claim for punitive damages. The Motion to Strike is MOOT given the Court’s ruling on the Demurrer. Defendant to give notice 4. Case Management Conference
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104	Vo vs. Silva 25-01481237	Motion to Be Relieved as Counsel of Record x 3 Matthew P. Cortez (“Moving Attorney”) moves to be relieved as counsel of record for (1) Defendant Jorge Perez De Tagle, (2) Defendant Quantum Global Health, Inc., and (3) Defendant La Vida Health & Wellness Center of Garden Grove The motions are unopposed. Moving Attorney has stated a basis for permissive withdrawal under the Rules of Professional Conduct, Rule 1.16. The motion satisfies the notice, declaration, and proposed order requirements of Cal. Rules of Court, Rule 3.1362 The Counsel to update and submit order (MC-053) for the Court’s signature. The order relieving counsel will be effective upon counsel filing proof of service of a copy of the signed order (MC-053) on the clients and on all parties that have appeared in the case. (California Rules of Court, Rule 3.1362(e).) The motions are GRANTED. Moving Attorney to give notice.
105	McClane vs Mofrad 24- 01370248	Motion to Be Relieved as Counsel of Record JONATHAN COLEMAN seeks an order relieving him from acting as counsel of record for Plaintiff Michael McClane. Motions to be relieved as counsel pursuant to Code of Civil Procedure § 284(2) are governed by California Rules of Court, Rule 3.1362. All the requirements of California Rules of Court, Rule 3.1362 have been met, and the Declaration of Attorney Jonathan Coleman appears to demonstrate good cause for granting the motion based on the allegations that:

		a) Irreconcilable differences between counsel and client; and b) Failure of communication Additionally, all required judicial counsel forms (MC-051, MC-052, and MC-053) relating to the notice of motion, declaration and proposed order have been utilized and properly served. [CRC 3.1362(a)-(d).] However, it is unclear whether this Court has acquired knowledge of the Plaintiff Client's address. Attorney failed to list the client's address in either the motion or proposed order (ROA 191). The client's address, as listed on the proof of service is Michael McClane 3775 Leticia Street, Chino, CA 91710 (ROA 188). Motion is GRANTED. Attorney is to update the proposed order with client's address and upcoming matters. Attorney to give notice. Attorney is relieved from acting as counsel of record when proof of service of order (MC-053) signed order has been filed herein.
106	Kinecta Federal Credit Union vs. Ogi 25-01509319	Motion to Set Aside/Vacate Default and Judgment Defendant, Jeffrey Masayuki Ogi ("Defendant"), moves for an order setting aside and vacating the entry of default and default judgment entered against him on January 31, 2026. The subject default was entered on January 30, 2026. (ROA 17.) The default judgment was entered on March 16, 2026. (ROA 37.) On May 27, 2026, Plaintiff, Kinecta Federal Credit Union ("Plaintiff"), timely filed proof of service of the

	opposing papers which show proper service on Defendant’s counsel pursuant to the Court’ May 26, 2026 Minute Order. (ROA 66.) Defendant contends that he was not properly served with the summons and Complaint because attorney Matthew E. Hess (“Hess”) was not his attorney for this matter, and that Defendant did not have actual notice of the lawsuit. Defendant asserts that the entry of default and judgment is void under Code of Civil Procedure section 473(d) because Plaintiff failed to serve Defendant in compliance with Code of Civil Procedure sections 415.10 and 415.20. Defendant also contends that the entry of default and any default judgment should be set aside pursuant to the Court’s equitable powers, pursuant to Code of Civil Procedure section 473.5, and pursuant to the discretionary and mandatory provisions of Code of Civil Procedure section 473(b). Plaintiff contends that the motion itself confirms that Hess sent creditor communications on Defendant’s behalf and asked to future correspondence be directed to him. Specifically, Plaintiff contends that on April 6, 2025, Hess sent Plaintiff’s counsel a written letter expressly confirming that he represented Defendant in this very collections matter and directing that all future communications be sent to him; that Plaintiff was entitled to rely on that written representation and routing instruction; that when Hess received Plaintiff’s communications, Defendant was deemed to have received those communications as a matter of law; and that Defendant cannot plausibly claim lack of notice when Hess designated himself as the exclusive recipient of communications and barred Plaintiff from having direct contact with Defendant. Plaintiff asserts that relief under Code of Civil Procedure sections 473.5 and 473(b), and equitable relief are not justified. Relief Under Code of Civil Procedure section 473(d) Code of Civil Procedure section 473(d) states, “[t]he court, may upon motion of the injured party, or its own
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	motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order.” A judgment which is void on its face is subject to set-aside at any time. (Cruz v. Fagor America, Inc. (2007) 146 Cal.App.4th 488, 496.) A judgment or order that is invalid on the face of the record, or when the uncontested extrinsic evidence shows that the defendant was never properly served, may be set aside with no time limit within which the motion must be made. (California Capital Ins. Co. v. Hoehn (2024) 17 Cal.5th 207, 215.) A section 473(d) motion to vacate a judgment that is void for lack of proper service is not subject to a two-year limitation. (Id. at p. 225.) “In determining whether an order is void for purposes of section 473, subdivision (d), courts distinguish between orders that are void on the face of the record and orders that appear valid on the face of the record but are shown to be invalid through consideration of extrinsic evidence.” (Pittman v. Beck Park Apartments, Ltd. (2018) 20 Cal.App.5th 1009, 1020 (“Pittman”).) “‘This distinction may be important in a particular case because it impacts the procedural mechanism available to attack the judgment [or order], when the judgment [or order] may be attacked, and how the party challenging the judgment [or order] provides that the judgment [or order] is void.’ [Citation.]” (Id. at pp. 1020-1021.) “An order is considered void on its face only when the invalidity is apparent from an inspection of the judgment roll or court record without consideration of extrinsic evidence. [Citations.]” (Id. at p. 1021.) “There is no time limit to attack a judgment void on its face. [Citations.]” (Ibid.) Here, Defendant seeks to show improper service through extrinsic evidence.
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		The proof of service of summons provides that Defendant was served by substitute service on the Law Offices of Matthew E. Hess, who “is the authorized agent” for Defendant. (ROA 12.) Defendant provides that Hess agreed to help stop the collection communications, but that Hess did not represent Defendant with regards to this lawsuit, and did not have authorization to accept service on Defendant’s behalf. (Declaration of Jeffrey Masayuki Ogi (“Ogi Decl.”), ¶¶ 4, 7.) Defendant also states, “No one served me or anyone in my household with a summons, complaint, or any other papers having to do with this lawsuit.” (Id., ¶ 5.) Plaintiff’s opposition does not specifically address relief under Code of Civil Procedure section 473(d), but disputes the premise that Hess was not an authorized agent of Defendant. Plaintiff cites to a communication dated April 6, 2025, authored by Hess and directed to Plaintiff’s counsel which states, in part: “I am the attorney for Jeff Ogi.” (Ex. 1 to Declaration of Sabaa “Darius” Ghomashchi.) Said communication also states, “Pursuant to 15 U.S.C. § 1692c(a)(2), please direct all future communications regarding this matter to me. You are not authorized to communicate with Mr. Ogi directly.” (Ibid.) Although Hess’s letter dated April 6, 2025, provides that “all future communications regarding this matter” should be directed to him, it does not state that any summons and Complaint should be served on Hess, and there appears to be no attempt to ensure that Hess was authorized to accept service on behalf of Defendant before filing the Complaint nearly five months later, especially after there was no response to Plaintiff’s June 27, 2025 letter. As there is no dispute that Plaintiff did not otherwise serve Defendant directly in any matter, it appears that the entry of default and entry of default judgment are void for lack of proper service. The Court GRANTS Defendant’s motion to set aside
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		and vacate entry of default and default judgment under Code of Civil Procedure section 473(d). Relief Under Code of Civil Procedure section 473.5 Defendant also contends that relief is available under Code of Civil Procedure section 473.5 as he was not served with the summons and Complaint, did not have actual notice of this lawsuit, and that the instant motion was brought timely. Plaintiff contends that Defendant had notice as Hess was expressly designated as counsel specifically for this action. “When service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against the party in the action, the party may serve an file a notice of motion to set aside the default or default judgment and for leave to defend the action.” (Code Civ. Proc. § 473.5(a).) “The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of: (i) two years after entry of a default judgment; or (ii) 180 days after service on the party of a written notice that the default or default judgment has been entered. (Code Civ. Proc. § 473.5(a).) Said motion must be “accompanied by an affidavit showing under oath that the party’s lack of actual notice in time to defend the action was not caused by his or her avoidance of service or inexcusable neglect.” (Code Civ. Proc. § 473.5(b).) “The party shall serve and file with the notice a copy of the answer, motion, or other pleading proposed to be filed in the action.” (Code Civ. Proc. § 473.5(b).) “Upon a finding by the court that the motion was made within the period permitted by subdivision (a) and that the party’s lack of actual notice in time to defend the action was not caused by the party’s avoidance of service or inexcusable neglect, it may set aside the default or default judgment on whatever terms as may
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	be just and allow the party to defend the action.” (Code Civ. Proc. § 473.5(c).) “[T]he reference in Code of Civil Procedure section 473.5 to ‘actual notice’ means genuine knowledge of the party litigant and does not contemplate notice imputed to a principal for an attorney’s actual notice.” (Rosenthal v. Garner (1983) 142 Cal.App.3d 891, 895.) Here, the instant motion is timely brought on March 17, 2026, less than three months after entry of default and just one day after entry of default judgment, and was concurrently filed with Defendant’s [Proposed] Answer. Defendant provides that no one served him or anyone in his household with a summons or complaint, that neither Plaintiff nor its attorneys notified Defendant that the lawsuit was filed at any point before they obtained a judgment, that Hess did not have authorization to accept service on Defendant’s behalf, and that Hess did not notify Defendant that a response to the lawsuit was required. (Ogi Decl., ¶¶ 5-8.) This supports that Defendant’s lack of actual notice in time to defend this action was not caused by his avoidance of service or inexcusable neglect. As to Hess, Hess could not reasonably have been Defendant’s counsel for this action before the action was filed. However, even assuming arguendo that Hess’s statement that he was Defendant’s attorney in the “matter” was construed as encompassing any possible lawsuit, notice to Hess should not be imputed to Defendant. In addition, Hess’s email informing Defendant that Plaintiff had tried to serve Hess, but that it “wasn’t valid service”, and the failure to inform Defendant that Defendant needed to respond constitutes inexcusable neglect constitutes positive misconduct. (See Rosenthal v. Garner (1983) 142 Cal.App.3d 891, 897-898 [even assuming that the party’s attorney in prior action represented party, sending a copy of the summons and
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		complaint to attorney did not constitute actual notice, nor should the inexcusable neglect of attorney in failing to communicate with party about the filing of the litigation be imputed on party].) Thus, relief is also available under Code of Civil Procedure section 473.5. Based on the foregoing, the Court GRANTS Defendant's motion to set aside and vacate entry of default and default judgment under Code of Civil Procedure sections 473(d) and 473.5. The default entered on January 30, 2026, and the default judgment entered on March 16, 2026, are set aside and vacated. Defendant to file and serve their proposed Answer within 10 days. In light of the foregoing, the Court declines to address Defendant's additional arguments that the entry of default and default judgment should be set aside and vacated under Code of Civil Procedure section 473(b), or based on equitable relief. Defendant to give notice
107	Neri Bahena vs. Gregory's Pallet Inc. 22-01281126	1. Motion for Terminating Sanctions In light of Plaintiff's pending motion for reconsideration of this Court's April 14, 2026, ruling on demurrer, the Motion for Terminating Sanctions is CONTINUED to 09/15/2026 at 10:00 a.m. in Department C25. Moving party to give notice. 2. Case Management Conference continued to 09/15/2026 at 10:00 AM Clerk to give notice.

108	Gorris vs. Extra Space Management, Inc. 25-01496221	1. Motion for Change of Venue (Transfer) Defendant Extra Space Management, Inc. (“Defendant”) moves to transfer this action to Alameda County Superior Court pursuant to Code of Civil Procedure sections 397(c) and 395.5. Defendant argues that it has complied with the requirements of Corporations Code section 2105 and is entitled to invoke the venue provisions under Code of Civil Procedure section 395.5. However, Defendant provides no evidence in support of this argument. It is Defendant’s burden to overcome the presumption that Plaintiff has selected the proper venue. (Mitchell v. Superior Court (1986) 186 Cal.App.3d 1040, 1046.) Defendant has not met that burden. Alternatively, Defendant argues that the Court should exercise its discretion to transfer this action to promote the convenience of witnesses and the ends of justice under section 397(c). Defendant contends that the events giving rise to Plaintiff’s claims all arise out of the Oakland facility and material witnesses such as the facility manager, those who communicated with Plaintiff and her family regarding the account and post-auction issues, and the third-party service that conducted the auction of Plaintiff’s unit are all located in or near Alameda County. “A moving party under section 397, subdivision (c) must demonstrate the transfer will promote both the convenience of witnesses and the ends of justice.” (Rycz v. Superior Court of San Francisco County (2022) 81 Cal.App.5th 824, 836.) “The declaration or declarations supporting [a motion to transfer for convenience of witnesses] should ‘set forth the names of the witnesses, the nature of the testimony expected
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		from each, and the reasons why the attendance of each would be inconvenient.’ ” (Ibid.) Here, as with Defendant’s prior Motion, which was denied on February 17, 2026, Defendant has not presented the names of any witnesses or the nature of expected testimony from any witnesses in the supporting declaration. Further, the declaration fails to set forth any reasons why the attendance of any witnesses in Orange County would be inconvenient. Thus, Defendant has failed to carry its burden to show transfer would promote the convenience of witnesses and the ends of justice. Moreover, Defendant already moved for the exact same relief and that prior Motion was denied. Code of Civil Procedure section 1008(b) provides in relevant part: “A party who originally made an application for an order which was refused in whole or part, or granted conditionally or on terms, may make a subsequent application for the same order upon new or different facts, circumstances, or law, in which case it shall be shown by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.” Defendant’s instant Motion does not comply with this section. Based on all of the above, the Motion is DENIED. Moving party to give notice. 2. Case Management Conference
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110	National Funding, Inc. vs. Klette Electric PLLC 25-01522615	1. Motion for Summary Judgment and/or Adjudication Plaintiff National Funding, Inc. (“Plaintiff”) moves for summary judgment against defendants Klette Electric PLLC dba Konebusch Electric (“Seller”) and Mary Klette (“Guarantor”) on its causes of action for breach of contract and breach of guaranty. The motion is unopposed, and the Court is inclined to grant it based on the undisputed material facts and supporting declaration. However, the proof of service shows that the moving papers were electronically served at info@thesandslawgroup.com. This is not the electronic address listed next to defense counsel’s name on the Answer filed on December 18, 2025. It appears that the proper address for defense counsel is info@tslg.law. In light of the potential service issues, Plaintiff is ORDERED to file a supplemental declaration or proof of service demonstrating either that the moving papers were served with sufficient notice at info@tslg.law or that info@thesandslawgroup.com is a proper electronic address for service on defense counsel. If Plaintiff does so and the filings show that service was properly made, the motion will be GRANTED. 2. Case Management Conference
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